

CONFIRMATORY
QUITCLAIM DEED

William E. O'Neil and Marie T. O'Neil, husband and wife as joint tenants and not as tenants in common, both of Dedham, Norfolk County, Commonwealth of Massachusetts for consideration paid of One (\$1.00) Dollar grant to Anthony F. Delapa and Joanne C. Delapa as they are Trustees of the Delapa Realty Trust under Declaration of Trust dated March 9, 1967, recorded with Norfolk Deeds in Book 4416, Page 326 with quitclaim covenants the land situated on Mill Street, Westwood, Norfolk County, Massachusetts being designated and shown as Lot 2^B on a plan entitled "Plan of Land in Westwood, Mass." by Pilling Engineering Company Inc. dated February 4, 1969, which plan is recorded with Norfolk Registry of Deeds as Plan No. 394 of 1969, Book 4594, Page 671, bounded and described according to said plan as follows:

NORTHEASTERLY	by Mill Street, as shown on said plan, 95 feet;
SOUTHEASTERLY	by land marked "Lot J Donald Hecht, Margaret M. Hecht" on said plan, 565 feet more or less;
SOUTHERLY	by land marked "Lot 4 James E. Kearns, Frances J. Kearns" on said plan, 235 feet more or less;
WESTERLY	in part by the end of Millbrook Road and in part by land marked "Richard P. Tschirch, Marylou Tschirch" on said plan, by three lines measuring 50 feet; 9.20 feet and 75.61 feet;
SOUTHWESTERLY	in part by said land marked "Richard P. Tschirch, Marylou Tschirch" on said plan, in part by land marked "Paul R. Kugel, Esther M. Kugel" on said plan and in part by land marked "Samuel DeBoer, Elizabeth F. DeBoer" on said plan, by two lines measuring 110.40 feet and 105 feet;
NORTHWESTERLY	by Lot 2 ^A , as shown on said plan, 160.06 feet;
NORTHERLY	by said Lot 2 ^A , 231.44 feet;
NORTHEASTERLY	by said Lot 2 ^A , 27.05 feet;
NORTHERLY	by said Lot 2 ^A by two lines measuring 182.45 feet and 154.17 feet; and
NORTHWESTERLY	by said Lot 2 ^A , 204.45 feet;

Containing according to said plan 174,240 square feet or 4.000 Acres.

Said premises are conveyed with the following right as appurtenant thereto:

- (a) To use in common with the Grantor and others lawfully entitled thereto for purposes of ingress and egress to and from said Lot 2B those portions crossing the Grantors remaining land consisting of a strip noted "Right of Way" on the plan hereinafter mentioned which lies within the limits of a parcel of land situated on Mill Street in Westwood, Norfolk County, Massachusetts, being designated and shown as Lot 2^A on a plan entitled "Plan of Land in Westwood, Mass."

RECEIVED & RECORDED

AUG 27 1969

AUG 27 1969

by Pilling Engineering Company Inc., dated February 4, 1969 amended February 5, 1969, which plan is filed in Norfolk Registry of Deeds as Plan No. 394 of 1969, Book 4594, Page 671 and said right of way being bounded and described according to said plan as follows:

Beginning at a point in the common boundary line of Lot 2^A and Lot 2^B, as shown on said plan, said point being a distance, measuring in three lines, 204.45 feet, 154.17 feet and 182.45 feet, Southwesterly and Northwesterly from Mill Street, as shown on said plan, and bounded

SOUTHWESTERLY by Lot 2^B, as shown on said plan, 27.05 feet;
 NORTHWESTERLY by Lot 2^A, as shown on said plan, being a curved line, 80.49 feet;
 NORTHERLY again by said Lot 2^A, by two lines measuring 150.75 feet and 128.47 feet;
 NORTHWESTERLY again by said Lot 2^A, 222 feet more or less;
 NORTHEASTERLY by Mill Street, as shown on said plan, 25 feet more or less;
 SOUTHEASTERLY again by said Lot 2^A, 145 feet more or less;
 SOUTHERLY again by said Lot 2^A, by two lines measuring 141.32 feet and 50.88 feet;
 SOUTHEASTERLY again by said Lot 2^A, being a curved line with a radius of 40.00 to the point where said curved line intersects the common boundary line of said Lot 2^A and said Lot 2^B; thence turning and running N 84° 00' 00" W along said common boundary line to the point of beginning.

- (b) The appurtenant right to pass and repass is limited to private passenger automobiles, bicycles and foot passage only; trucks, vans, machinery and such non-private passenger vehicles are restricted to passage for fuel delivery, maintenance and repairs to and construction of a proposed single family residence.
- (c) The appurtenant right to pass over said "right of way" on Lot 2^A requires the grantees to conduct prompt removal of all snow and ice from all pavement and the repair and maintenance of the now existing bituminous concrete pavement, on Lot 2^A, in a reasonable condition for passage as aforesaid of a standard similar to accepted streets and ways in the Town of Westwood.
- (d) No vehicles or bicycles may be left standing or parked at any time on the aforesaid "right of way."
- (e) The appurtenant right conveyed about does not include any rights to lay pipes, change grades, erect structures in, on, over or under the aforesaid "right of way."

4594

The Commonwealth of Massachusetts

671

Norfolk,

ss.

May 28, 1969

Then personally appeared the above-named Frank J. Bocchino and Jean P. Bocchinoand acknowledged the foregoing instrument to be their free act and deed before me.

Richard B. Lane
 Richard B. Lane, Notary Public
 My commission expires Feb. 2, 1973.

Recorded May 30, 1969 at 12h.10m.P.M.

FORM E
COVENANT

The undersigned Joseph F. Hearne and/
Myra A. Hearne
 of Norfolk County, Massachusetts, hereinafter called
 the "Covenantor," having submitted to the Westwood Planning Board, a definitive
 plan of a subdivision, entitled Plan of Land in Westwood, Mass.
 dated February 4, 1969 made by Pilling Engineering Company Inc.
 does hereby covenant and agree with said Planning Board and the successors in office
 of said Board, pursuant to G. L. (Ter. Ed.) C. 41, Sec. 81U, as amended, that:-

1. The covenantor is the owner of record of the premises shown on said plan;
2. This covenant shall run with the land and be binding upon the executors, administrators, heirs, assigns of the covenantor, and their successors in title to the premises shown on said plan;
3. The construction of ways and the installation of municipal services shall be provided to serve any lot in accordance with the applicable Rules and Regulations of said Board before such lot may be built upon or conveyed, other than by mortgage deed; provided that a mortgagee who acquires title to the mortgaged premises by foreclosure or otherwise and any succeeding owner of the mortgaged premises or part thereof may sell any such lot, subject only to that portion of this Covenant which provides that no lot so sold shall be built upon until such ways and services have been provided to serve such lot; specifically including requirements under Section II-F Waiver.
4. Nothing herein shall be deemed to prohibit a conveyance subject to this covenant by a single deed of the entire parcel of land shown on the subdivision plan or of all lots not previously released by the Planning Board without first providing such ways and services;
5. This covenant shall take effect upon the approval of said plan;
6. Reference to this covenant shall be entered upon said plan and this covenant shall be recorded when said plan is recorded.

The undersigned
wife, husband, of the covenantor hereby agree that such interest as I, we, may have
in said premises shall be subject to the provisions of this covenant and insofar as
is necessary release all rights of tenancy by the courtesy, dower, homestead and
other interest therein.

EXECUTED as a sealed instrument this 16 Day of May 19 69.

Joseph F. Hearne
 Joseph F. Hearne
Myra A. Hearne
 Myra A. Hearne

NOTARY PUBLIC COMMONWEALTH OF MASSACHUSETTS

Then personally appeared Joseph F. Hearne and Myra A. Hearne
 and acknowledged the foregoing instrument to be their free act and deed, before me
 My commission expires May 30, 1969

Notary Public

Recorded May 30, 1969 at 1h.07m.P.M.

See
 Record 4534 0473

The premises hereby conveyed shall be subject to the following restrictions which shall be construed as covenants running with the land and shall be binding and in full force and effect until the first day of January in the year 2025.

- (1) Said Lot 2^B shall be used only for the purpose of a dwelling house designed for the occupancy of and used by one family only.
- (2) No business of any nature, whether mercantile, manufacturing, professional or other shall be allowed or conducted upon said premises.
- (3) No commercial vehicle shall be regularly parked on the premises nor shall any house trailer, camper, boat and/or trailer, or other recreational vehicle be allowed to remain on the premises.
- (4) No livestock, poultry or pigeons shall be kept on the premises, household pets to be excepted from the restrictions.

The Grantors expressly reserve the following rights, privileges and easements, forever, in, over, under, upon or through said Lot 2^B:

- A. To use the areas designated and shown as a pond on Lot 2^B on said plan for skating, sledding, bathing, swimming, boating, fishing or other recreational purposes and for the purpose of access to the same the right, privilege and easement, forever, to pass and repass by foot, bicycle, horse or horse-drawn sleigh or carriage, over that portion of Lot 2^B

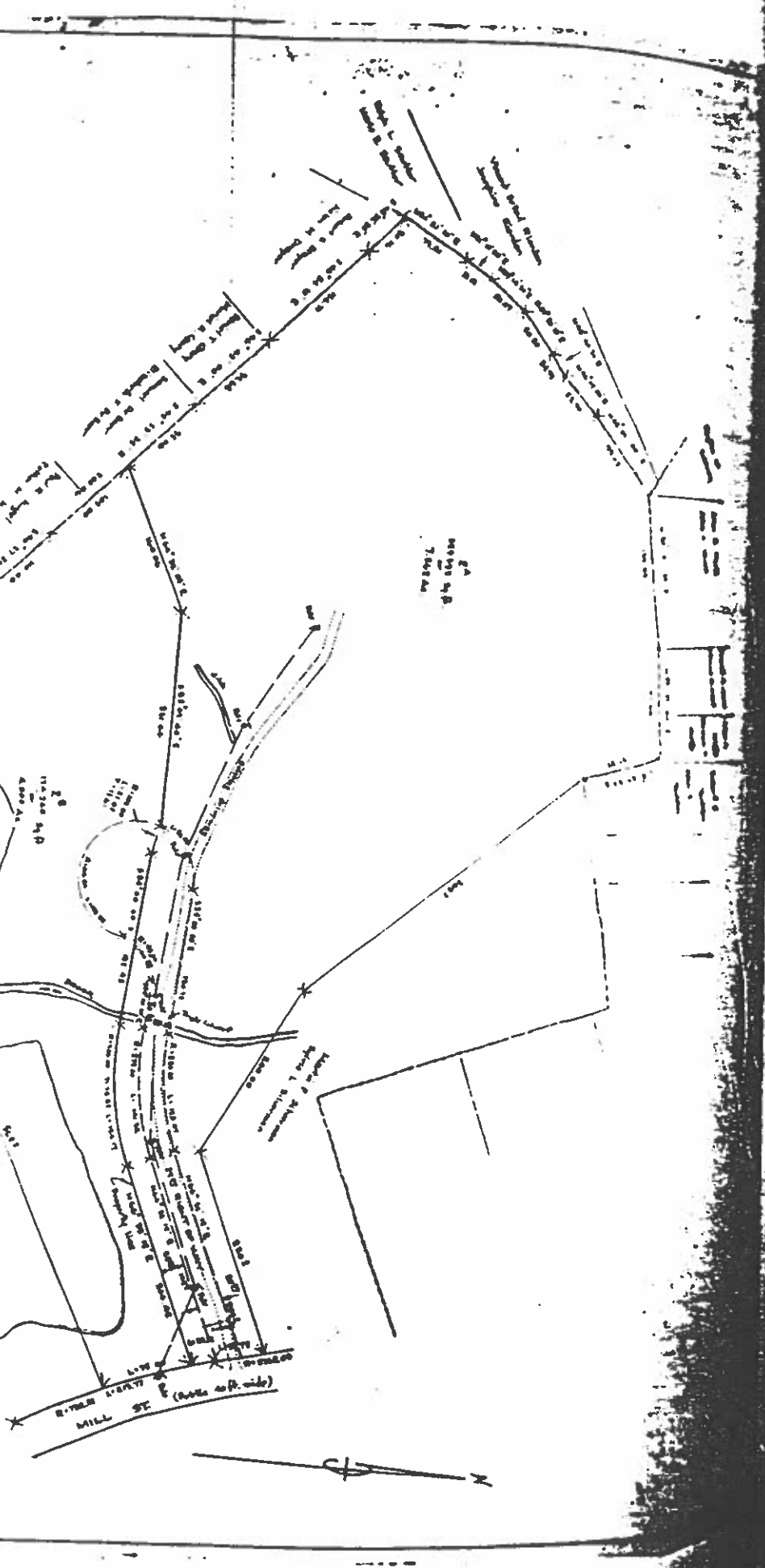
Approved: *David M. McGee*
 Date: *April 30, 1939*
 By: *James S. McGee*
 Title: *President*
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WESTWOOD, MASS.

Surveyed February 5, 1939

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